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11/12/2021 4:55:00 PM $70.00
Book - 11268 Pg - 4405-4413
RASHELLE HOBBS
Recorder, Salt Lake County, UT
OLD REPUBLIC TITLE DRAPER/OREM
BY: eCASH, DEPUTY - EF 9 P.

When recorded, send notice to:
P.G.L.C., LLC
2025 Mahre Drive
Park City, Utah 84098
ORT File 2051144HM
Tax ID: See Tax numbers on Exhibit A

Supplemental Declaration and Notice of Vested Mining Use[1]

Utah Code § 17-41-501 to -503 (2021)

THIS SUPPLEMENTAL DECLARATION AND NOTICE OF VESTED MINING USE (**"Declaration"**) is made by the undersigned mine operator (the term "mine operator" includes any natural person, corporation, association, partnership, receiver, trustee, executor, administrator, guardian, fiduciary, agent, or other organization or representative, either public or private, including a successor, assign, subsidiary, related parent company, and predecessor in interest, all of which are collectively referred to herein as **"Declarant"**) of the real property legally described on Exhibit A attached hereto and incorporated herein by this reference (the **"Property"**). Declarant is the successor in interest to P.G.L.C., LLC, R.R.L.C., LLC, Rock & Roll Land Company, Inc., Pharaohs Glen Land Company, Inc., Parleys Canyon Aggregate Company, Ira Sachs, Old Spanish Claim, L.C., Old Spanish Claim, L.L.C., Old Spanish Claim, LLC, who, together with Harper Contracting, Inc., Rulon Harper Construction, Inc. and Rulon J. Harper executed that certain Declaration of Vested Mining Use recorded as Entry No. 13131633 in the official records of Salt Lake County on November 22, 2019 at Book 10864, Pages 630 to 639. Declarant is also the successor in interest to Shaun Nacey and Marla Nacey, who executed that certain Supplemental Declaration and Notice of Vested Mining Use recorded as Entry No. 13586235 in the official records of Salt Lake County on March 4, 2021 at Book 11130, Pages 635-637.

Pursuant to Utah Code § 17-41-501(4), the undersigned Declarant hereby provides notice of a vested mining use on the Property as follows:

A. This Declaration is intended to be a declaration of a vested mining use on the Property in accordance with Utah Code §§ 17-41-501 to -503 (2021).

B. Declarant owns or controls the Property including, without limitation, the surface and subsurface estates, mineral estates, fee estates, leasehold estates, easement estates, undivided interests, and other mineral interests, rights, and leases comprising the Property, together with all rights, privileges, easements, tenements, hereditaments, rights of way, leases, licenses, and appurtenances that belong or appertain thereto including, without limitation, rights to minerals, water, water rights and water stock, buildings, structures, and other improvements.

[1] The purpose of this Supplemental Declaration is made pursuant to Paragraph L of that certain Declaration of Vested Mining Use recorded as Entry No. 13131633 in the official records of Salt Lake County on November 22, 2019 at Book 10864, Pages 630 to 639 to make clear that Tree Farm, LLC now owns or controls the Property described on Exhibit A and holds a vested mining use pursuant to the 2021 version of the vested mining use statute, which is codified at Utah Code § 17-41-501 to -503 (2021).

C. A mining use, as defined in Utah Code § 17-41-101(16), existed or was conducted or was otherwise engaged in on the Property by Portland Cement Company of Utah, which changed its name to Utah Portland Quarries, Inc. (**"Portland Cement"**), and others, at least as early as the 1890s, before statehood, and well before Salt Lake County restricted or otherwise limited mining use in the area. Evidence of such prior mining operations is readily apparent from a physical inspection of the Property and historic records.

D. Beginning in 1992, and on various dates prior to October 1997, Declarant's predecessors acquired the Property with the intent to mine it.

E. Since at least 1993, Declarant's predecessors have operated as a joint venture regarding the Property.

F. In 1995, a Notice of Intention to Commence Large Mining Operations with respect to a portion of the Property (the **"Large Mine Permit"**) was filed with the Utah Department of Natural Resources' Division of Oil, Gas and Mining (**"DOGM"**) by Rock and Roll Land Company, Inc., as owner, and Harper Contracting, Inc., as operator. DOGM approved the Large Mine Permit in 1996 and the Large Mine Permit remains active today.

G. The Property has been continuously used or held for use for mining operations.

H. Commercial quantities of a mineral deposit have been produced from the Property dating back to the earliest mining activity. In 1994, over 90,000 tons of a mineral deposit were mined from the Property. In 2009, over 725,000 tons of a mineral deposit were mined from the Property. In 2019, over 386,485 tons of a mineral deposit were mined from the Property.

I. Declarant qualifies as a "mine operator" under Utah Code § 17-41-101(13) because, as of January 1, 2019, Declarant (a) owned, controlled, or managed a mining use under the Large Mine Permit; and (b) had produced and continue to produce commercial quantities of a mineral deposit from the mining use.

J. Pursuant to Utah Code § 17-41-101(15), the Property is a part of the mining protection area and is entitled to all rights, benefits, and protections under Utah Code, Title 17, Chapter 41.

K. Pursuant to Utah Code § 17-41-501(3), the present or future boundary described in the Large Mine Permit does not limit the scope of the Declarant's vested mining rights and does not limit the protection provided under Utah law for a mining protection area.

L. Declarant reserves the right, pursuant to Utah Code § 17-41-502 to expand the vested mining use. Declarant may progress, extend, enlarge, grow, or expand the vested mining use to any surface or subsurface land or mineral estate that the mine operator owns or controls, Utah Code § 17-41-502(1)(a); and Declarant may expand the vested mining use to any new land that (i) is contiguous and related in mineralization to surface or subsurface land or a mineral estate that the mine operator already owns or controls; (ii) contains minerals that are part of the

same mineral trend as the minerals that the mine operator already owns or controls; or (iii) is a geologic offshoot to surface or subsurface land or a mineral estate that the mine operator already owns or controls, Utah Code § 17-41-502(1)(b). This Declaration and the description of the Property set forth in Exhibit A are not intended to incorporate all of the real property interests owned or controlled by the Declarant that Declarant has the right to include as part of Declarant's vested mining use. Declarant hereby reserves the right from time to time to: (a) remove all or portions of the Property from this Declaration and/or the mining protection area; (b) incorporate into this Declaration additional real property interests owned or controlled by Declarant; (c) add new land, as defined under Utah Code § 17-41-101(18), and pursuant to Utah Code § 17-41-502, to this Declaration; and/or (d) correct errors in the legal descriptions for the Property. Any such removal, addition, or correction hereunder shall be effective upon recording of an amendment or supplement to this Declaration. Any amendment or supplement to this Declaration to incorporate additional real property interests under subsection (b) of this paragraph as part of Declarant's vested mining use declared hereunder shall relate back to the date this Declaration is recorded.

M. The vested mining use declared hereunder shall run with and bind the land within the Property as provided by Utah Code § 17-41-501(2), subject only to express abandonment by written declaration according to Utah Code § 17-41-503.

Dated this 12th day of November, 2021.

[signatures on following page]

DECLARANT

Tree Farm, LLC

By: Jesse Lassley
Its: Manager

STATE OF UTAH)
: ss.
COUNTY OF Salt Lake)

On the 12th day of November, 2021, Jesse Lassley appeared before me who duly acknowledged and executed the above instrument in the capacity so stated.

Notary Public

(seal)

Notary Public - State of Utah
CYNTHIA B. ALLEN
Comm. #714253
My Commission Expires
October 25, 2024

EXHIBIT A
to Supplemental Declaration of Vested Mining Use

EXHIBIT A

The "Property" referred to in the foregoing instrument is located in Salt Lake County, Utah, and is more particularly described as follows:

Parcel A:
THE SHALE AND LIMESTONE PLACER MINING CLAIM, a patented property, designated as Mineral Survey No. 5031 covering all or portions of the following described lands:

The East Half of the Southeast Quarter of Northeast Quarter (E½SE¼NE¼); Southwest Quarter of Southeast Quarter of Northeast Quarter (SW¼SE¼NE¼); Southeast Quarter of Southwest Quarter of Northeast Quarter (SE¼SW¼NE¼); West Half of East Half of Northwest Quarter of Southeast Quarter (W½E½NW¼SE¼); East Half of West Half of Northwest Quarter of Southeast Quarter (E½W½NW¼SE¼); Northwest Quarter of Southwest Quarter of Southeast Quarter (NW¼SW ¼SE¼); Northeast Quarter of Southeast Quarter of Southwest Quarter (NE¼SE¼SW¼); South Half of Southeast Quarter of Southwest Quarter (S½SE¼SW¼); ALL in and of Section 24, Township 1 South, Range 1 East, Salt Lake Base and Meridian, Situate in the Hot Springs Mining District, Salt Lake County, Utah.

Parcel B:
The patented placer mining claim and premises known as the COMPROMISE PLACER MINING CLAIM and covering the lands described as Lots numbered 4, 14, 15, 16, 17 and 18 in Section 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian; and also Lots numbered 1, 2, and 3 in Section 24, Township 1 South, Range 1 East, Salt Lake Base and Meridian, all situated in the Hot Springs Mining District, Salt Lake County, Utah.

Parcel C:
The patented placer mining claim and premises known as the UNION LIMESTONE QUARRY PLACER MINING CLAIM, Mineral Survey No. 5710, and covering the following described lands: West Half of the Southwest Quarter of the Southeast Quarter (W½SW¼SE¼); Northeast Quarter of the Southwest Quarter of the Southeast Quarter (NE¼SW¼SE¼); Northwest Quarter of the Southeast Quarter (NW ¼SE¼); and a portion of the East Half of the Southeast Quarter of the Southwest Quarter (E½SE¼SW¼), beginning at the South Quarter corner of Sec. 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, thence North 89°51'00" West 39.8 feet, thence North 57°26'00" West 735.8 feet, thence North 924.1 feet, thence South 89°58' East 660 feet, thence South 1320 feet to the point of beginning; all situated in Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, the Hot Springs Mining District, Salt Lake County, State of Utah.

Parcel D:
The patented placer mining claims known as the PORTLAND CEMENT NO. 1, and the PORTLAND CEMENT NO. 2, Survey No. 4269, situated in the Hot Springs Mining District, Salt Lake County, State of Utah, in Sections 18 and 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel E:
The Northeast Quarter of the Southeast Quarter (NE¼SE¼) of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel F:
All of Lots 2 and 6, Section 19, Township l South, Range 2 East, Salt Lake Base and Meridian.

Parcel G:
The Southwest Quarter of the Northeast Quarter; the Northwest Quarter of the Southeast Quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, also that portion of said Section 17, contained in the East half of the Northeast Quarter of said Section, lying West and North of the Right-of-Way owned by the Utah State Road Commission.

Parcel H:
The Southeast Quarter of the Southeast Quarter of Section 8, and the West half of the Southwest Quarter and the Southeast Quarter of the Southwest Quarter of Section 9, Township 1 South, Range 2 East, Salt Lake Base and Meridian. Excepting therefrom that portion of said premises heretofore conveyed by deed executed by Hans Anderson and wife to George A. Olmstead and wife, dated November 8, 1899 and recorded in Book 5Q of Deeds at Page 335, of official records of Salt Lake County, Utah.

Parcel I:
Beginning at the Southwest corner of Section 9, Township 1 South, Range 2 East, Salt Lake Base and Meridian; thence South 89 degrees a 38 minutes West 200.5 feet; thence North 31 degrees 25 minutes 01 seconds East 2 feet; thence North 60 degrees 54 minutes East 268.45 feet; thence South 83 degrees 31 minutes East 240.35 feet; thence North 72 degrees 59 minutes East 110.95 feet; thence North 55 degrees 37 minutes 32 seconds East 145 feet more or less; thence South 218 feet more or less; thence West 500 feet more or less to the point of beginning.

Parcel J:
The Southeast Quarter of the Southwest Quarter of the Southeast Quarter (SE¼SW¼SE¼) of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel O:
The West half of the Southwest quarter of Section 16, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel P:
The South half of the Southeast quarter and the Northeast quarter of the Southeast quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Lone Pine Claim and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No. 3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

Parcel Q:
Lots 1, 2, 7, 8, 9, and 10, Section 20, Township 1 South, Range 2 East, Salt Lake Base and Meridian, said Lots 1, 8 and 9 extending into and being also part of the West one-half of Section 21, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Last Chance Amended Claim, the Last Chance No. 2 Amended Claim and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No.3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

Parcel R:
Lots 3, 4, 5, 6, 11, and 12, Section 21, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Last Chance Amended Claim, the Last Chance No. 2 Amended Claim, and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No. 3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

LESS AND EXCEPTING any portion of the foregoing premises lying within the bounds of Wasatch Boulevard.

FURTHER EXCEPTING AND EXCLUDING any portion of the foregoing premises heretofore conveyed to or condemned by the State Road Commission of Utah for a freeway project known as I-80 and all appurtenant parts thereof as disclosed by various instruments of record.

The following is included for informational purposes only:
Salt Lake County Parcel Nos.
16-24-300-004
16-24-300-005
17-08-400-006
17-08-400-007
17-08-476-001
17-09-300-004
17-09-300-007
17-16-300-001
17-17-400-002
17-17-400-004
17-18-300-011
17-18-300-012
17-18-400-007
17-18-400-009
17-18-400-010
17-18-400-011
17-19-100-007
17-19-100-008
17-19-100-009
17-19-200-002
17-20-200-003

17-21-100-001
17-09-300-006
17-09-376-001